

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

August 27, 2018

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Roybal moved to approve Consent Agenda items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on August 13, 2018. Motion (per Consent Agenda) carried.

Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body.

Mayor Orr opened a public hearing to receive comments and input to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for the S½ E½, Tract 1, Skyline Tracts, and that portion of Brimmer Road right-of-way adjacent to said S½ E½ of Tract 1, Laramie County, Wyoming, situated in SE¼ SE¼, Section 18, Township 14 North, Range 66 West of the 6th P.M., County of Laramie, State of Wyoming (located northwest of the intersection of Storey Boulevard and Powderhouse Road). Seth Lloyd, Planning and Development office, provided information on the property requested by the landowner to be annexed, and reviewed requirements of and compliance with annexation conditions contained in state statutes. Inquiry was made regarding property ownership. There being no further comments or input and purpose of the public hearing having been met, Mayor Orr closed the public hearing.

ORDINANCE – 3rd READING – Repealing Section 9.12.080, Electric Fences Prohibited, of Chapter 9.12, Offenses Against Property, of Title 9, Public Peace and Welfare, of the Code of the City of Cheyenne, Wyoming. Reporting for Public Services Committee, Mr. Roybal advised there was no recommendation on the item from the Committee. There being no motion to approve, Mayor Orr announced the item died.

ORDINANCE – 1st READING – Amending Section 5.12.020, Definitions, and Section 5.12.030, Licenses and permits – Types, of Chapter 5.12, Alcoholic Liquor and Malt Beverages,

of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming, pertaining to special malt beverage (annual) permits – referred to Finance Committee. (Sponsor – Mr. White)

ORDINANCE – 1st READING – Annexing to the City of Cheyenne, Wyoming, the S½ E½, Tract 1, Skyline Tracts, and that portion of Brimmer Road right-of-way adjacent to said S½ E½ of Tract 1, Laramie County, Wyoming situated in SE¼ SE¼, Section 18, Township 14 North, Range 66 West of the 6th P.M., County of Laramie, State of Wyoming (located northwest of the intersection of Storey Boulevard and Powderhouse Road) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County LR Low-Density Residential to LR Low-Density Residential for the S½ E½, Tract 1, Skyline Tracts, Laramie County, Wyoming (located northwest of the intersection of Storey Boulevard and Powderhouse Road) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Section 5.1.5.b to increase the size of Semi-attached Dwelling (“Duplex”) lots in the MR Medium-Density Residential zone district – referred to Public Services Committee. (Sponsor – Mr. Roybal)

RESOLUTION – Authorizing submission of a Federal Mineral Royalty Capital Construction Account grant application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne to purchase fifty dual band portable radios, twenty dual band mobile radios and the necessary accessories for Cheyenne Fire and Rescue. Mayor Orr advised it would be more advantageous to the City to enter into a lease/purchase agreement for the radios instead of applying for the grant, which is a very competitive process. Chief Greg Hoggatt explained the provider of the radios is currently offering a discount in addition to the state (local government) discount the City receives, and by acquiring through a lease/purchase agreement the radios could be acquired sooner. Discussion included Fire and Rescue equipment inventory and life-cycle of equipment in conjunction with the next budget preparation cycle; length of agreement for payments; technical assistance and warranty included with the agreement, and funding source for the purchase from 5th Penny sales tax overage. Reporting for Finance Committee, Mr. White advised there was no recommendation on the item from the Committee. There being no motion to approve, Mayor Orr announced the item died.

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2019 budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Adopting the recommendations of the Cheyenne Broadband Task Force, which will serve as a catalytic event to facilitate accelerated deployment of ubiquitous, affordable,

high-speed internet access – referred to Finance Committee. (Sponsors – Mr. Johnson, Mr. Roybal, Mr. White)

Rental Agreement between the City of Cheyenne, Community Recreation and Events Department, and Cheyenne Capitals Youth Hockey Association for use of the Ice and Events Center (revenue to City). Mr. White moved to approve, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body. (#6896)

[CA] Employment Agreement between the City of Cheyenne, Cheyenne Police Department, and Leslie Burch, for crime victim assistance services (Wyoming Division of Victim Services grant). Motion (per Consent Agenda) carried (base salary amount of \$48,878.52 plus eligible benefits). (#6897)

[CA] Employment Agreement between the City of Cheyenne, Cheyenne Police Department, and Brenda Johnson, for crime victim assistance services (Wyoming Division of Victim Services grant). Motion (per Consent Agenda) carried (base salary amount of \$35,859.12 plus eligible benefits). (#6898)

[CA] Employment Agreement between the City of Cheyenne, Cheyenne Police Department, and Jessica A. Fritz, for crime victim assistance services (Wyoming Division of Victim Services grant). Motion (per Consent Agenda) carried (base salary amount of \$31,200.00 plus eligible benefits). (#6899)

[CA] Employment Agreement between the City of Cheyenne, Cheyenne Police Department, and Desiree M. Vigil, for crime victim assistance services (Wyoming Division of Victim Services grant). Motion (per Consent Agenda) carried (base salary amount of \$14,400.00 plus eligible benefits). (#6900)

[CA] Agreement between the City of Cheyenne, and the Wyoming Department of Transportation for a Wyoming Rural Public Transportation grant to assist in providing local match for operating funds for the Cheyenne Transit Program for FY 2019 (WYDOT grant). Motion (per Consent Agenda) carried. (#6901)

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, and Laramie County School District No. 1 for school resource officers for the 2018-2019 school year and summer school 2019 – referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 6743 between the City of Cheyenne and River Oaks Communications Corporation for drafting and negotiation of Charter Communications Cable Franchise renewal and CenturyLink Cable Television franchise agreements to extend the completion date. Motion (per Consent Agenda) carried (amount not to exceed \$15,000.00). (#6743)

Contract Modification No. 1 to Contract No. 6839 between the City of Cheyenne, Engineering Department, and Reiman Corp, for the Civic Center Commons Park Project (1%

Specific Purpose Sales Tax, WBC, SLIB, BOPU, FEMA funds). Mayor Orr referred the item to Finance Committee. Amy Allen, City Engineer, provided an explanation for the modification request, noting funding involves the transfer of force account funds and would not affect the overall budgeted amount. Ms. Allen advised site problems were encountered by the contractor involving sheet piling and the modification will help get the walls to the desired depth, and reported FEMA had recently approved a six month extension for the project. Mr. White reported the Finance Committee had reviewed the item under other items for the agenda at its August 20, 2018 meeting, therefore, provisions of City Code Title 2 had been met. Mr. White moved to approve, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body. (#6839)

[CA] Amendment No. 4 to Contract No. 2985 between the City of Cheyenne and the City of Cheyenne, Wyoming-Laramie County, State of Wyoming Joint Powers Board, for use of premises within Frontier Park – referred to Finance Committee.

[CA] Consideration of Bid #E-3-19 for furnishing two new 2018-2019 John Deere Pro-Gators for the City of Cheyenne, Cemetery Division (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Stolz Equipment, Casper, Wyoming, in an amount not to exceed \$42,600.00)

[CA] Consideration of Bid #S-4-19 for a contract between the City of Cheyenne, Community Recreation and Events Department, and Anthony Carr & Son Painting, for the Historic Union Pacific Depot Restoration: Windows Project (grants and City funds). Motion (per Consent Agenda) carried (accepted bid in an amount not exceed \$127,159.00). (#6902)

[CA] Consideration of Bid #S-2-19 for a contract between the City of Cheyenne, Community Recreation and Events Department, and ISC Builders, LLC, Cheyenne, Wyoming, for the Civic Center Hand Rails and Sightline Project (2015-2018 1% Sales Tax, Civic Center funds) – referred to Finance Committee.

[CA] Consideration of Bid #E-5-19 for furnishing one new 2017-2018 front end wheel loader with less than 10 hours (rebid) for the Street and Alley Division (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] City of Cheyenne Annual Employee Performance Evaluation Plan – Report to the Governing Body – referred to Committee of the Whole.

[CA] Annual report to the City of Cheyenne regarding capital improvements made to the building located at 4801 Central Avenue, as well as any improvements/repairs made to the golf course as required by Lease Agreement No. 2833 between the City of Cheyenne and the Airport Golf Club, Inc. – referred to Finance Committee.

Announcement was made that due to the Labor Day holiday on Monday, September 3, 2018, the regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, Room 104, 2101 O’Neil Avenue, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, September 4, 2018 at 11:00 a.m. and Public Services Committee

will meet Wednesday, September 5, 2018 at Noon. Committee of the Whole will meet Wednesday, September 5, 2018 at 6:00 p.m. in City Council Chambers.

Under other business:

Grady Lee Fitzgerald III expressed concerns with a change some hotels are making to remove one of two interior security door locks in guest rooms and requested City Council consider addressing the issue as a public safety concern. Mayor Orr advised his concerns were noted and would be relayed to Visit Cheyenne.

Mr. Laybourn commented on the recent successful Edge Fest celebration and congratulated all involved with planning of the event.

Mr. Johnson invited the public to attend the September 8th re-dedication ceremony of the Clark Hose bell, which has been relocated to Fire Station 2, located near the intersection of Walterscheid and Fox Farm Rd.

Mayor Orr noted the building at 815 Capitol Avenue has been razed as part of the Fight the Blight program.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:29 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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